MEMORANDUM OF UNDERSTANDING

KNOW ALL MEN BY THESE PRESENTS:

This Memorandum of UNDERSTANDING ("MOU") is executed and entered into this 29 day of DEC 2023, 2023 at SORSOGON CITY, among:

The **Partido State University,** an educational institution with principal office address at San Juan Bautista, Goa, Camarines Sur, represented herein by its President, **Raul G. Bradecina, PhD**, SUC President III, or their duly designated representative, hereinafter referred to as the **"PSU";**

and

The **Sorsogon State University**, an educational institution with principal address at Magsaysay St., Sorsogon City, represented herein by its President, **Geraldine F. De Jesus, EdD,** SUC President III, or their duly designated representative, hereinafter referred to as the **"SorSU";**

(Collectively referred to as the "Parties" or individually as "Party")

WITNESSETH THAT:

WHEREAS, PSU envisions itself to be a leading University in geology, bio-resource science, and environmental management in the Bicol region. It also commits to providing quality instruction in the arts, philosophy, sciences, technology, and other relevant courses and creates a competitive advantage in research, extension, and production services for the socio-economic upliftment of the Bicolanos;

WHEREAS, SorSU envisions itself as a research university with a culture of excellence in developing globally competitive and value-oriented leaders and professionals. The SorSU also has a mission to provide advanced professional, technical, and special instruction and undertake innovative research and collaborative extension and income-generating programs for the sustainable development of Sorsogon and beyond.

WHEREAS, PSU and SorSU, aim to materialize their visions and achieve their missions through research, extension, and collaboration as part of their Visions and Missions for the socio-economic upliftment and sustainable development of the Bicol region;

WHEREAS, The Bicol region, as an archipelago, has an untapped research potential, specifically on marine-centered studies, as marine waters bound it in almost all of its area. The region also has a rich marine biodiversity that calls for studies ranging from biodiversity assessment, species identification and characterization, distribution model and mapping, socio-cultural studies, biogeography mapping, among others.

NOW, THEREFORE, for and in consideration of the foregoing premises, the Parties are willing to enter into this **MOU** to declare their respective intentions and to establish a basis of cooperation and collaboration between the Parties in accordance with the terms contained herein and have reached an understanding as follows:

ARTICLE I. OBJECTIVE

The Parties shall work to build, promote, and establish institutional disciplines and links for research between the Parties based on equality and mutual benefit, according to the terms and conditions stated hereunder and the applicable laws, rules, regulations, and policies.

ARTICLE II. AREAS OF COOPERATION

1. Each Party shall work to take the necessary action to foster and develop cooperation between all Parties in the following areas, according to the applicable laws, decrees, rules, regulations, and national policies regulating the subject matter.
    a. Joint investigation or research on areas of study agreed upon by both Parties.
    b. Set up a program for the exchange of researchers and faculty from each institution for research purposes.
    c. Investigate the possibilities for research collaboration and publication in the research areas of shared interest. The arrangement for such work shall be subject to any terms and conditions that the Parties may mutually agree upon.
    d. Share expertise in the areas where each Party excels, such as climate resilience, marine biology, marine science, and fisheries, among others that may fall under the expertise of all Parties.
    e. Disseminate technologies generated through research collaboration for the mutual benefit of all the Parties involved.
2. Any joint actions from discussions between the Parties based on this MOU will have their specifics outlined in a separate Agreement, the conditions and terms of which shall be governed by mutual agreement between the Parties and shall be signed by all Parties.
3. To carry out and be accountable for implementing the cooperation program outlined in this MOU, the Parties shall each name a person as the "Coordinator."

ARTICLE III. FINANCIAL ARRANGEMENTS

There are no monetary commitments associated with this MOU. Unless otherwise agreed upon by the Parties and fully executed in writing by each Party. Each Party shall be responsible for its expenditures and expenses. A separate Memorandum of Agreement and Terms of Reference must describe any funding arrangements for joint research to further the objectives outlined in this MOU.

ARTICLE IV. EFFECT OF MEMORANDUM OF UNDERSTANDING

This MOU does not establish or create any obligations under domestic or international law and is not intended to do so. It also shall not give rise to any legal action and shall not be construed as creating any express or implied obligations which are legally binding or enforceable.

ARTICLE V. NO AGENCY / PARTY PROTECTION

Nothing in this document should be interpreted as creating a formal joint venture partnership or other business organization between the Parties or designating one Party as the other's agent.

ARTICLE VI. EFFECTIVITY, IP OWNERSHIP, AND DATA PRIVACY

6.1 Term and Pre-Termination.

a. The term for this MOU is five (5) years, beginning on the date of execution (the "Commencement Date") and ending on the "Termination Date." The parties may extend the MOU subject to the terms and conditions mutually agreed upon by all parties after its initial term has expired. At least thirty (30) days before the Termination Date, either Party may notify the other and indicate their intent to extend this MOU.

b. Each Party shall provide prior written notice to the other Parties at least two (2) months before the intended termination date if it wishes to pre-terminate this MOU before the termination date for any reason.

6.2 Intellectual Property Rights and Data Privacy. The rights and obligations of the Parties shall be governed by RA No. 10055, also known as The Technology Transfer Act, should any intellectual property result from this project. Should the Parties generate personal data or other information while carrying out the tasks outlined in this Memorandum of Understanding, the provisions of Republic Act No. 10173, also known as the Data Privacy Act of 2012, and Republic Act No. 8293, also known as the "Intellectual Property Code of the Philippines" shall apply to the matter.

ARTICLE VII. NOTICES

Any notices, correspondences, and other communications under this MOU must be in writing and delivered personally, by electronic mail, facsimile transmission, registered mail, private courier, or, if necessary, to the electronic mail address(es) or facsimile number(s) specified here. Any notices, letters, or other communications of a similar nature shall be assumed to have been given when personally delivered (including by courier) or when sent to the recipient(s) at the specified address(es), email address(es), or facsimile number(s), regardless of actual receipt.

ARTICLE VIII. SETTLEMENT OF DISPUTES

If there is a dispute between the Parties about this MOU, its interpretation, or the execution of this MOU, the Parties shall make every effort to settle the dispute diplomatically by negotiation.

ARTICLE IX. ENTIRE AGREEMENT

This MOU supersedes all prior expressions of intent, representations, or warranties with respect to the subject matter hereof and represents the entire agreement between the Parties. The conditions of this MOU can only be changed, revised, or in any other way modified with a written document that each Party has properly signed.

ARTICLE X. SEVERABILITY

The remaining clauses of this MOU remain valid and legal and shall be accorded full force and effect even if one or more provisions are found invalid, illegal, or unenforceable.

ARTICLE XI. GOVERNING LAW

The laws of the Republic of the Philippines shall govern the construction and interpretation of this agreement.

IN WITNESS WHEREOF, the Parties hereunto have set their hands this ___ day of DEC 29 2023 20___ at SORSOGON CITY.

For the PSU-Caramoan

RAUL G. BRADECINA, PhD
SUC President III

For _____

GERALDINE F. DE JESUS, EdD
SUC President III

Signed in the Presence of:

MICHAEL A. CLORES, PhD
Dean, ParSU – Caramoan

RICHARD V. DUMILAG, PhD
Professor, SorSU

ACKNOWLEDGMENT

Republic of the Philippines)

Province of Camarines Sur) S.S.

SORSOGON CITY

Before me, this _____ day of DEC 29 2023 20____ in SORSOGON CITY, personally appeared:

Name	Government ID #	Place Issued	Date Issued
RAUL G. BRADECINA, PhD	P7648090B	DFA Legazpi	21 September 2021
GERALDINE F. DE JESUS, EdD	151-355-544	Sorsogon, Philippines	08 December 1999

All known to me be the same persons who executed the foregoing instrument and that they acknowledged to me that the same is their free and voluntary act and deed.

This instrument refers to an MOU consisting of 5 pages including this page where the acknowledgement is written, has been signed by the Parties and their witnesses on each and every page thereof and sealed with my notary seal.

IN MY WITNESS WHEREFORE, I have hereunto set my hand and seal on the date and place first above written.

NOTARY PUBLIC

ATTY. MARY JOY C. BONGAPAT
NOTARY PUBLIC UNTIL DEC. 31, 2023 FOR SORSOGON CITY, DONSOL, PILAR, CASTILLA, JUBAN, & CASIGURAN
IBP NO. 263306 FOR 2023
PTR NO. 0600664 SORSOGON CITY 2023
MCLE CERTIFICATE (COMPLIANCE UNTIL 05/14/2025)
ROLL NO. 77730

Doc. No. 246;

Page No. 51;

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